

CHAPTER 32

An Act to amend section three hundred and thirty-nine of the Local Government (Scotland) Act, 1947, with respect to the purposes for which payments may be made thereunder. [22nd June, 1961]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. Section three hundred and thirty-nine of the Local Government (Scotland) Act, 1947 (which relates to expenditure by county and town councils on special purposes) shall have effect as if after subsection (1) there were inserted the following subsection—

Amendment
of s. 339 of
10 & 11 Geo. 6.
c. 43.

“(1A) For the purposes of the foregoing subsection a payment being a contribution—

- (a) to the funds of a charitable body, corporate or unincorporate, in furtherance of its work in Scotland; or
- (b) to the funds of any body, corporate or unincorporate, which provides, otherwise than for the purposes of gain by the body or by individual members thereof, any national or public service in Scotland; or
- (c) to a fund which is raised wholly in consequence of or in connection with a particular occurrence or even in Scotland or directly affecting persons residing in Scotland and on behalf of which a public appeal for contributions has been made by the provost of a burgh or the convener of a county or the lord lieutenant of a county in Scotland or by a body including among its members one or more such persons;

may be treated as a payment for a purpose which is in the interests of the inhabitants of the area of the council making such payment.”

2. Any increase attributable to this Act in the sums payable by way of Exchequer Equalisation Grant under the enactments relating to local government in Scotland shall be defrayed out of moneys provided by Parliament.

Financial
provisions

3. This Act may be cited as the Local Authorities (Expenditure on Special Purposes) (Scotland) Act, 1961.